

Smt. Sunanda Gon Choudhury vs The Child Welfare Committee on 6 January, 2026

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA
AGARTALA
WP(CRL.) NO.07 OF 2025

Smt. Sunanda Gon Choudhury, D/O: Sri Narayan Gon Choudhury, R/O:
Glorious Apartment, 1st Floor, Madhyapara-4, P.O: Agartala, P.S: West
Agartala, Dist: West Tripura, PIN: 799001, aged about: 51 years.

..... Appellant(s)

Versus

1. The Child Welfare Committee, Represented by its Chair Person, Dhalai District, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.
2. Sri Prantosh Datta, Chair Person, Child Welfare Committee, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.
3. Smt. Gita Lodh Guha Roy. Member, Child Welfare Committee, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.
4. Sri Rajib Bhattacharjee, Member, Child Welfare Committee, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.
5. Smt. Madhumita Datta Ghosh, Member, Child Welfare Committee, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.
6. Smt. Rupa Majumder Datta, Member, Child Welfare Committee, Jawaharnagar, P.O & P.S: Ambassa, Dist: Dhalai, PIN: 799289.

.....Respondent(s)

For the Petitioner(s) : Mr. Arijit Bhowmik, Advocate.

Mr. P. Bhattacharjee, Advocate.

Mr. U. Das, Advocate.

Mr. S. Saha, Advocate.

For the Respondent(s) : Mr. P. Gautam, Sr. G.A.

Date of hearing and delivery of
Judgment & Order : 06.01.2026.

Whether fit for reporting : YES.

HON'BLE JUSTICE DR. T. AMARNATH GOUD
HON'BLE MR. JUSTICE S. DATTA PURKAYASTHA
J U D G M E N T & O R D E R (ORAL)

(T. AMARNATH GOUD, J)

1. Heard Mr. A. Bhowmik, learned counsel appearing for the petitioner, as well as Mr. P. Gautam, learned counsel appearing on behalf of respondents No. 1 to 6.

2. The facts of the case are that the petitioner was married to Sri Narayan Singha on 02.02.2014 according to Hindu rites and customs. Owing to marital discord, the petitioner instituted a divorce suit being T.S. (Div) No. 214 of 2022 before the learned Family Court, West Tripura, Agartala, which was allowed, and the marriage between the parties was dissolved by judgment and decree dated 18.07.2024. No child was born out of the said wedlock. After the divorce, with the consent of her family members, the petitioner approached the Child Welfare Committee seeking foster care of a child. By decision dated 13.09.2024, the Child Welfare Committee, Dhalai District, Ambassa, upon considering the relevant reports, declared Master Kunit Gour, aged about 10 years, to be a child in need of care and protection and placed him in foster care with the petitioner for a period of one year. Subsequently, the petitioner reported serious behavioural issues of the child and, after attempting to care for him for about six months, requested the authorities by letter dated 26.03.2025 to take back the child. Pursuant thereto, by order dated 06.05.2025, the Child Welfare Committee directed the release of the child from foster care and his placement in an open shelter at Melarmath, West Tripura. Thereafter, by order dated 01.07.2025, the Child Welfare Committee held the petitioner guilty of an offence under Section 75 of the Juvenile Justice (Care and Protection of Children) Act, 2015, and imposed a fine of Rs. 2,00,000/-, directing the amount to be deposited in a bank account to be operated by the child upon attaining majority.

3. Aggrieved by the said impugned order dated 01.07.2025, the petitioner has filed the present appeal seeking the following reliefs:-

"i. Issue notice upon the Respondents.

ii. Call for the records.

iii. Issue Rule calling upon the Respondents to show cause as to why the order dated 01.07.2025 passed by the Child Welfare Committee, Dhalai, Ambassa whereby the Petitioner has been convicted and found guilty of the offence under Section 75 of the Act of 2015 and fine of Rs. 2 lakhs has been imposed on the Petitioner shall not be set aside and quashed.

AND Issue Rule calling upon the Respondents to show cause as to why the Respondents shall not be prohibited from taking up any proceedings for offences against the Petitioner under the Act of 2015.

iv. And after hearing the parties be pleased to make the rule absolute.

AND In the interim, be pleased to stay the operation and effect of the order dated 01.07.2025 passed by the Child Welfare Committee, Dhalai District, Ambassa till disposal of the connected petition.

AND/OR Pass any other order/orders as deemed fit and proper."

4. Mr. Arijit Bhowmik, learned counsel appearing for the petitioner, submits that the impugned order dated 01.07.2025 has been passed without any proper investigation or following the legal procedure. It is a unilateral order without holding any trial in accordance with the procedure established by law. Learned counsel appearing for the petitioner also highlighted the fact that a bare reading of Section 86 of the Juvenile Justice (Care and Protection of Children) Act, 2015 makes it clear that the offences under the Act are to be tried by the designated courts. The impugned order convicting the petitioner guilty of the offence under Section 75 of the Act of 2015 is, on the face of the record, an unsustainable order, having been passed by an authority lacking subject-matter jurisdiction and also for not holding any trial in accordance with the procedure established by law. Stating thus, learned counsel appearing for the appellant urged this Court to allow the appeal.

5. On the other hand, Mr. P. Gautam, learned Senior Government Advocate appearing for the respondents, submits that the impugned order passed is just and proper, taking into consideration the facts and circumstances of the case. The punishment has been imposed after proper investigation.

6. Heard and perused the evidence on record.

7. For proper adjudication of the matter, let us examine Section 75 and 86 of the Juvenile Justice (Care and Protection of Children) Act, 2015. The same is produce here-in-under:-

" Section 75. Punishment for cruelty to child. Whoever, having the actual charge of, or control over, a child, assaults, abandons, abuses, exposes or wilfully neglects the child or causes or procures the child to be assaulted, abandoned, abused, exposed or neglected in a manner likely to cause such child unnecessary mental or physical suffering, shall be punishable with imprisonment for a term which may extend to three years or with fine of one lakh rupees or with both:

Provided that in case it is found that such abandonment of the child by the biological parents is due to circumstances beyond their control, it shall be presumed that such abandonment is not wilful and the penal provisions of this section shall not apply in such cases:

Provided further that if such offence is committed by any person employed by or managing an organisation, which is entrusted with the care and protection of the child, he shall be punished with rigorous imprisonment which may extend up to five years, and fine which may extend up to five lakh rupees:

Provided also that on account of the aforesaid cruelty, if the child is physically incapacitated or develops a mental illness or is rendered mentally unfit to perform regular tasks or has risk to life or limb, such person shall be punishable with rigorous imprisonment, not less than three years but which may be extended up to ten years and shall also be liable to fine of five lakh rupees.

Section 86. Classification of offences and designated court.

(1) Where an offence under this Act is punishable with imprisonment for a term of more than seven years, then such offence shall be cognizable, non-bailable.

(2) Where an offence under this Act is punishable with imprisonment for a term of three years and above, but not more than seven years, then such offence shall be cognizable, non-bailable. (3) Where an offence, under this Act is punishable with imprisonment for less than three years or with fine only, then such offence shall be non-cognizable and bailable.

(4) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, the Commission for Protection of Child Rights Act, 2005(4 of 2006), or the Protection of Children from Sexual Offences Act, 2012(32 of 2012), offences under this Act shall be triable by the Children's Court."

8. On perusal of the impugned order dated 01.07.2025, it appears that the said order is unilateral in nature. No opportunity of hearing was given to the writ petitioner, and the impugned order does not indicate the steps taken for providing due opportunity to the petitioner. There is no whisper about calling for any reports or furnishing any such documents to the petitioner, which amounts to violation of the principles of natural justice. More-so, Section 86 of the Juvenile Justice (Care and

Protection of Children) Act, 2015 provides that any punishment for an offence under Section 75 of the Act is to be imposed by the concerned Court having jurisdiction. In the present case, the entire procedure contemplated under the Act has not been followed.

9. In view of the above, this Court finds that the impugned order passed by the respondent authority, dated 01.07.2025, is erroneous and unsustainable in the eye of law and is liable to be set aside. Accordingly, the impugned order is set aside and the writ petition is allowed.

10. As a sequel, stay if any stands vacated. Pending application(s), if any also stands closed.

S. DATTA PURKAYASTHA, J DR. T. AMARNATH GOUD, J suhanjit SABYASAC Digitally signed by SABYASACHI GHOSH HI GHOSH Date: 2026.01.12 13:22:03 +05'30'